SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Criminal Appeal No. 267 of 1995

CNR: SCIN010002671995

Date of Pronouncement: 21 March, 1996

Citation: (1996) 2 SCC 648

CORAM: Hon'ble J.S. Verma, G.N. Ray, N.P. Singh, Faizan Uddin, G.T. Nanavati, JJ.

Petitioner / Appellant: Gian Kaur

- VERSUS -

Respondent / State: State of Punjab

SUBJECT: CRIMINAL LAW & CONSTITUTIONAL VALIDITY **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Article 21 cannot be construed to include within its ambit the 'right to die'. Right to life is a natural right while suicide is an unnatural termination of life. P. Rathinam v. Union of India is overruled.

STATUTORY PROVISIONS INTERPRETED: Section 306 IPC, Section 309 IPC, Article 21, Article 14

FINAL DISPOSITION: CONSTITUTIONAL VALIDITY OF SECTIONS 306 AND 309 IPC UPHELD

EXECUTIVE SUMMARY:

Five-judge Constitution Bench overruled P. Rathinam (1994) and upheld the constitutional validity of Section 306 (abetment of suicide) and Section 309 IPC, ruling that Article 21 protects life and does not include the right to commit suicide.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

SECURE RECORD ID: 22222222-0014-4000-8000-000000000014 | CANONICAL FILE: SC_1996_Crl_App_No_267_of_1995_22220014.pdf

TAMPER-PROOF RECORD AUTHENTICATED VIA MERKLE AUDIT CHAIN